

		who violates section 31110 "shall be liable to the franchisee or subfranchisor, who may sue for damages caused thereby. . . ." Similarly, section 31301, which gives rise to a private right of action for violations of section 31201, provides that any person who violates section 31201 "shall be liable to any person (not knowing or having cause to believe that such statement was false or misleading) who, while relying upon such statement shall have purchased a franchise, for damages. . . ." Sections 31300 and 31301 establish that damages are an element of Plaintiff's causes of action for violations of sections 31110 and 31201. However, Plaintiff has not submitted any evidence of its damages in support of its motion. Thus, Plaintiff has not met its burden to show it is entitled to summary adjudication of the first, second, or third causes of action. Plaintiff argues that its motion turns on whether the statutory violations have been established and not whether all issues relating to remedy have been resolved. This ignores the fact that summary adjudication cannot be granted unless it completely disposes of a cause of action. To prevail on its causes of action under sections 31300 and 31301, Plaintiff must not only establish that Defendants violated the alleged provisions, but also that Plaintiff suffered damages as a result of those violations. Plaintiff also cites to <i>Andalon v. Superior Court</i> (1984) 162 Cal.App.3d 600 to argue that summary adjudication is proper on individual elements within a cause of action. Andalon was decided before section 437c was amended in 1990 to limit summary adjudication and is therefore inapplicable here. In light of the above, the motion for summary adjudication is DENIED. <i>Plaintiff to give notice.</i>
113	Eizad vs. Izad, 25-01476014	Defendant Hassan Izad ("Defendant") demurs to the entire Complaint, including the: (1) first cause of action for breach of contract, (2) second cause of action for breach of fiduciary duty, (3) third cause of action for negligence, (4) fourth cause of action for fraud, and (5) fifth cause of action for unjust enrichment. (ROA 2.)

		Plaintiff Sam Eizad ("Plaintiff") opposes the demurrer. The Court finds that the allegations in the Complaint are generally uncertain. It is unclear whether Plaintiff's action is brought pursuant to the terms of the trust or a separate agreement. Plaintiff alleges that "[o]n January 1, 2024, Defendant promised Plaintiff that Defendant was going to use the property of the Eizad Trust – amounting to \$1,000,000 ('the Eizad Trust Property') -- to invest for the personal benefit of Plaintiff." However, it is unclear whether this was a written or oral promise or an express or implied promise and, as mentioned earlier, it is unclear whether this promise was in addition to the trust or part of the trust discussed in the Complaint. Moreover, the Court finds that Plaintiff has not sufficiently stated the terms of the promise. Based on these uncertainties, the duties Defendant allegedly owed Plaintiff are uncertain as well. Additionally, the Court finds that Plaintiff's fraud cause of action lacks the requisite specificity. Fraud causes of action must be pled with specificity. "...This particularity requirement necessitates pleading facts which 'show how, when, where, to whom and by what means the representations were tendered.'" (<i>Stansfield v. Starkey</i> (1990) 220 Cal.App.3d 59, 73.) "This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the false representations were made." (<i>State ex rel. Edelweiss Fund, LLC v. JPMorgan Chase & Co.</i> (2023) 90 Cal.App.5th 1119, 1136–1137, as modified on denial of reh'g (May 30, 2023), review denied (Aug. 9, 2023) [internal citations omitted].) "The complaint must plead the time, place, and contents of the false representations, as well as the identity of the person making the misrepresentation and what he obtained thereby." (<i>Ibid.</i>)
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		Given the above, the demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND. <i>Defendant to give notice.</i>
200	Slayton vs. City of Santa Ana, 21-01204216	<i>Parties should contact the clerk of the court.</i>